

# Indian Railway Board Act, 1905

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Indian Railway Board Act, 1905

UNION OF INDIA

India

Indian Railway Board Act, 1905

Act 4 of 1905

Published on 22 March 1905

Commenced on 22 March 1905

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Indian Railway Board Act, 1905

(Act

No. 4 of 1905

)

Last Updated 27th December, 2019

[22nd March, 1905.]

This Act has been extended to Berar by the Berar Laws Act, 1941 (4 of 1941) and has been declared to be in force in the Sonthal Parganas by notification under section 3 (3) (a) of the Sonthal Parganas Settlement Regulation (3 of 1872), see Calcutta Gazette, 1906, Pt. I, p.33, and in the Angul District by the Angul Laws Regulation, 1936 (5 of 1936), section 3 and the Schedule.; in Dadra and Nagar Haveli (w.e.f. 1-7-1965): vide Reg. 6 of 1963, s. 2 and the First Schedule and in Pondicherry (w.e.f. 1-10-1963): vide Reg 7 of 1963, s. 3 and the First Schedule.

An Act to provide for investing the Railway Board with certain powers or functions under the Indian Railways Act, 1890. Whereas a Railway Board has been constituted for controlling the administration of railways in India, and it is expedient to provide for investing such Board with certain powers or functions under the Indian Railways Act, 1890 (9 of 1890); It is hereby enacted as follows: -

1.

Short title and construction.

(1)

This Act may be called the Indian Railway Board Act, 1905; and

(2)

It shall be read with, and taken as part of, the Indian Railways Act, 1890 (9 of 1890).

2.

Investment of Railway Board with powers under Indian Railways Act, 1890.

- The Central Government may, by [notification]

[For notifications see Gazette of India, 1905, Pt. I, p. 232; 1906, Pt. I, p.927, and 1908, Pt. I, p.169.]

in the Official Gazette, invest the Railway Board, either absolutely or subject to conditions,-

(a)

with all or any of the powers or functions of the Central Government under the Indian Railways Act, 1890 (9 of 1890), with respect to all or any railways, and

(b)

with the power of the officer referred to in section 47 of the said Act to make general rules for railways administered by the Government.

3.

Mode of signifying communications from the Railway Board.

- Any notice, determination, direction, requisition, appointment, expression of opinion, approval or sanction, to be given or signified on the part of the Railway Board. for any of the purposes of, or in relation to, any powers or functions with which it may be invested by notification under section 2, shall be sufficient and binding if in writing signed by the Secretary to the Railway Board, or by any other person authorized by the said Railway Board to act in its behalf in respect of the matters to which such authorisation may relate; and the said Railway Board shall not in any case be bound in respect of any of the matters aforesaid unless by some writing signed in manner aforesaid.

4.

[

[Inserted by the A.O. 1937.]

Cessation of Railway Board on establishment of Federal Railway Authority.]

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